

Tentative Rulings for August 6, 2026 Department M205

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M205 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 571 6184**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2505917	CAPITAL ONE, N.A. VS WACHTER	MOTION TO VACATE DISMISSAL 664.6 AND ENTER JUDGMENT

Tentative Ruling: OFF CALENDAR.

2.

CASE #	CASE NAME	HEARING NAME
CVME2506507	CAPITAL ONE N.A. VS RASCON	MOTION TO VACATE DISMISSAL 664.6 AND ENTER JUDGMENT

Tentative Ruling: OFF CALENDAR.

3.

CASE #	CASE NAME	HEARING NAME
CVME2511171	NAVY FEDERAL CREDIT UNION VS BROWN	MOTION TO COMPEL FURTHER RESPONSES

Tentative Ruling:

Moving party: Plf, Navy Federal Credit Union
Represented by: Silverman Theologou, LLP

Responding party: Def, Shanae Brown
Represented by: *self-represented*

Motion filed: 4/1/26

Opposition filed: 4/21/26

Reply filed: none at the time the workup was completed

Tentative rulings posted for the 5/4/26 hearing and 6/29/226 hearing.

Meet and Confer Efforts

A motion to compel a further response to interrogatories, requests for production of documents, or requests for admission must be accompanied by a meet and confer declaration. (CCP § 2030.300(b), § 2031.310(b); § 2033.290(b).) The declaration must state facts showing a “reasonable and good faith attempt, **either in person, by telephone, or by videoconference**” to resolve informally the issues presented by the motion before filing the motion. (CCP § 2016.040(a).)

“The purpose of the meet and confer requirement is to force lawyers to reexamine their positions, and to narrow their discovery disputes to the irreducible minimum, before calling upon the court to resolve the matter.” (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 8:1159 citing, *Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016-2017.) “Failing to make a “reasonable and good faith attempt” to resolve the issues informally before a motion to compel is filed constitutes a “misuse of the discovery process” for which monetary sanctions can be imposed. (*Id.* at § 8:1174.)

Here, Plaintiff served the SRs, RFAs, and RPDs on 12/17/25. (Dec.Kostelidis ¶ 2, Ex. “A”.) On 1/26/26, Plaintiff sent a meet and confer letter stating that no discovery responses had been received. (*Id.* ¶ 3, Ex. “D”.) On 1/29/26, Plaintiff received Ms. Brown’s discovery responses by mail. (*Id.* ¶ 4, Ex. “B”.) Plaintiff determined the responses were insufficient, evasive, and not Code-compliant, and sent a detailed meet and confer letter on 2/2/26. (*Id.* ¶¶5-6, Ex. “C”.) Plaintiff did not provide supplemental responses by the deadline, or thereafter. (*Id.* ¶ 7.) Plaintiff has **not** sufficiently met and conferred to support this motion **because it did not meet and confer “in person, by telephone, or by videoconference” as required by CCP § 2016.040(a).** Notably, at the 2 prior hearings hearing held on 5/4/26 and 6/29/2026, the Court continued the motion to allow Plaintiff to properly meet and confer in the manner required by CCP § 2016.040(a). The Court also stated: “If Defendant properly responds to the discovery demands, Plaintiff is to notify this court to vacate the hearing. If Defendant does not properly respond to the discovery demands, Plaintiff is to file a Declaration stating the efforts made to meet and confer.” (Minute Order of 5/4/26 and 6/29/26.) As of 8/4/26, the motion remains on calendar. And, no meet and confer declaration has been filed since the 5/4/26 or 6/29/26 hearing.

Separate Statement

Cal. Rules of Court (CRC), Rule 3.1345(c)(1)-(3) requires that a separate statement set forth each interrogatory to which further answer is sought, numbered and set forth *verbatim*; the answer or objection made by the opposing party, also *verbatim*; and the reason further responses should be ordered by the court. A separate statement is required. (CRC, Rule 3.1345(c).) Failure to comply with this rule is grounds to deny the motion. (see *Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 892-893.) Here, Plaintiff did not file a separate statement. Thus, the motion could be denied on this basis.

The court has given two continuances for the Plaintiff to properly meet and confer **as required by CCP § 2016.040(). Plaintiff has failed to comply; therefore, the Motion is DENIED.**

4.

CASE #	CASE NAME	HEARING NAME
CVME2515361	WELLS FARGO BANK, N.A. VS OLMSTEAD, AN INDIVIDUAL	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling:

Moving party: Plaintiff Wells Fargo Bank, N.A.
Represented by: Collection at Law, Inc.

Non-Opposing party: Defendant Sheryl A. Olmstead
Represented by: pro per¹

¹ Plaintiff was represented by Huron Legal Group, P.C. when she filed her answer. On June 16, 2026, a substitution of attorney was filed and Plaintiff is now representing herself.

TIMELINESS OF MOTION

Note: C.C.P., § 437(a) provides, in pertinent part: “The motion may be made at any time after 60 days have elapsed since the general appearance in the action or proceeding of each party against whom the motion is directed or at any earlier time after the general appearance that the court, with or without notice and upon good cause shown, may direct.” The purpose of the 60-day hold at the beginning of the case is to give the opposing party a reasonable opportunity to investigate and obtain discovery before having to deal with a motion that could terminate the litigation. (Weil & Brown, The Rutter Group Cal. Prac. Guide: Civil Procedure Before Trial (June 2024 Update), Summary Judgment and Summary Adjudication, § 10.56.) Nonetheless, motions filed prematurely may be deemed “made” at hearing. (C.C.P., § 1005.5; *Sadlier v. Sup. Ct.* (1986) 184 Cal.App.3d 1050, 1053-1054 [finding the trial court did not err in hearing the motion on the merits, after considering oral argument on the premature filing of the motion].)

Here, the motion was filed on 4/7/26, which is only 56 days after Defendant filed an answer on 2/10/26. Plaintiff failed to explain why it was filed prematurely or otherwise failed to show good cause.

1. Plaintiff may request oral argument and explain why they filed their motion prematurely.
2. If no oral argument is requested, the court will delay/continue the hearing and allow Defendant time to investigate and obtain discovery to oppose the motion. (*First State Ins. Co. v. Sup. Ct.* (2000) 79 Cal.App.324, 333. Septer 24, 2026 at 8:00 a.m., Dept. M205, Remote appearance is allowed.

5.

CASE #	CASE NAME	HEARING NAME
CVME2600690	TIME TRIAL INVESTMENTS, LLC VS UGALDE	PETITION FOR INJUNCTIVE RELIEF

Tentative Ruling: Unopposed.

The Court orders: I. enjoining Respondent(s) from violating Park Rules 8(G) Conduct, 11(D), 11(G) and 11(1) Pets, and that requires Respondent to comply with the following within fourteen (14) days from the date the Order is signed: Respondent(s) shall: a. Remove the dog from the Space or provide documentation for reasonable accommodation; b. Provide vaccination records for their unregistered pet; c. Provide a letter from a physician/therapist indicating the need for an emotional support dog; d. Cease leaving their dog outside unattended; e. Cease allowing their dog to excessively bark; f. Cease and desist from all annoying and nuisance conduct; g. Comply with the Rules and Regulations of the Park Rules; and h. Cease and desist violating the Park's Rules and Regulations, and the laws of the State of California.

The court will reserve on issues of attorneys's fees because the court does not have an attorney fee declaration to be able to properly address that issue.

Plaintiff to submit an order within 10 days for the court's signature

6.

CASE #	CASE NAME	HEARING NAME
CVME2605803	MATHEWS VS MCLEAN	DEMURRER

Tentative Ruling:

Moving party: Defendants Tim McLean, Elite Management, and Megan Palmer

Responding party: Plaintiff Jennifer Mathews

Motion filed: 6/15/26

Opposition filed: 7/9/26

Reply filed: 7/27/26

This is an HOA dispute. Plaintiff Jennifer Mathews (“Plaintiff”), in pro per, alleges that Defendants Tim McLean, Elite Management, and Megan Palmer failed to investigate her complaints, maintain common areas, supervise vendors despite HOA dues being paid, and provide financial records, causing interference with her use and enjoyment of her property. She alleges that she experienced “dry vegetation, fire hazards, rodent issues, trash accumulation, and unsafe conditions.” The operative form complaint, filed 4/24/26, identifies breach of contract and an unspecified “other” claim or claims. The complaint does not separately plead any additional cause of action.

Now, Defendants demur to the entire complaint on uncertainty grounds because it does not identify the “other” claims asserted, and that it fails to state a contract breach claim because it does not mention a contract at all.

In opposition, Plaintiff argues the complaint gives fair notice by identifying the parties, alleged conduct, and resulting damages. She argues that a demurrer does not test proof. She further argues that she can at least amend the pleading to identify the governing documents, claims, defendants’ conduct, and damages.

In reply, Defendants argue that the pleading does not provide fair notice of the claims asserted, does not separately identify any other cause of action, and does not tie any specific grievance to a legally cognizable claim.

A. Meet and Confer

Code of Civil Procedure § 430.41 requires a meet and confer process via *telephone, videoconferencing, or in person* before a party files a demurrer. The moving party must identify the specific causes of action or allegations subject to challenge, and the opposing party must provide legal support for its position. (Code Civ. Proc., § 430.41(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (*Id.* at § 430.41(a)(3).) Here, defense counsel declares that he left a voicemail, sent multiple emails, and sought a telephone conference, but Plaintiff declined a telephone, video, or in-person discussion, since she was emotionally overwhelmed. (Peters Decl., ¶¶ 3-9.) Defendants complied.

B. Demurrer

1. Special Demurrer

A special demurrer for uncertainty lies where the pleading is ambiguous or unintelligible. (Code Civ. Proc., § 430.10(f).) Demurrers for uncertainty will only be sustained where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) Here, the complaint does not identify the particular causes of action, the defendant or defendants against whom each claim is asserted, or the basis for the checked box for contract claim. It is unclear if certain facts are intended to support some specific theories. The complaint therefore does not permit Defendants to determine the claims they must answer. This lack of clarity renders the complaint uncertain and is a proper ground for sustaining a special demurrer.

Here, the 1-page attachment to the form complaint does not allege the essential elements of a breach-of-contract claim: a contract, Plaintiff's performance or excuse, Defendants' breach, and resulting damage. The pleading does not identify any agreement to which Plaintiff and a defendant were parties, any contractual duty owed to Plaintiff, or any term allegedly breached. The complaint also checks the "Other" box under ¶18 but does not separately state another cause of action.

The Court sustains the demurrer in its entirety with 30 days leave to amend.

7.

CASE #	CASE NAME	HEARING NAME
UDME2600517	KERIAKOUS VS REESE	MOTION TO BE RELIEVED AS COUNSEL

Tentative Ruling: Motion unopposed. Motion **GRANTED**. Court will sign the proposed order. Attorney is relieved as counsel of record effective upon the filing of the proof of service of this signed order upon the client.